

The Rights of Indians and Tribes

Fifth Edition

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OXFORD
UNIVERSITY PRESS

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Published in the United States of America by Oxford University Press
198 Madison Avenue, New York, NY 10016, United States of America.

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Library of Congress Cataloging-in-Publication Data
Names: Pevar, Stephen L., author.

Title: The rights of Indians and tribes / Stephen L. Pevar.

Description: New York : Oxford University Press, 2024. |

Includes bibliographical references and index.

Identifiers: LCCN 2023049574 (print) | LCCN 2023049575 (ebook) |
ISBN 9780190077563 (paperback) | ISBN 9780190077556 (hardback) |

ISBN 9780190077570 (updf) | ISBN 9780190077587 (epub) |

ISBN 9780190077594 (digital-online)

Subjects: LCSH: Indians of North America—Civil rights. | Indians of North
America—Legal status, laws, etc. | Tribal government—United States. |

Tribes—Legal status, laws, etc.—United States.

Classification: LCC KIE110 .P48 2024 (print) | LCC KIE110 (ebook) |

DDC 342.7308/72—dc23/eng/20231024

LC record available at <https://lcn.loc.gov/2023049574>

LC ebook record available at <https://lcn.loc.gov/2023049575>

DOI: 10.1093/oso/9780190077556.001.0001

Paperback printed by Marquis Book Printing, Canada

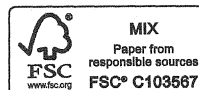
Hardback printed by Bridgeport National Bindery, Inc., United States of America

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To my immediate family: Laurel, Lianna, and Elena;

To the Hoskins family and its matriarch, Margaret;

*To the Antoine family of the Rosebud Sioux Indian Reservation and its
matriarch, Muriel;*

*To the staff of the ACLU, in appreciation for their inspiring dedication to
liberty, equality, and racial justice, with whom I had the pleasure of working
for forty-five years;*

*And to the Indian tribes and their members, including my clients, who had the
courage to take a stand against injustice and to fight for their rights, and whose
efforts and resulting court decisions are among those discussed in these pages.*

III

The Trust Responsibility

There has long existed, the Supreme Court has acknowledged, “a general trust relationship between the United States and the Indian people.”¹ As a result of that relationship, the federal government “has charged itself with moral obligations of the highest responsibility and trust, . . . to the fulfillment of which the national honor has been committed.”²

During the past half-century, Congress has created numerous programs for Indian tribes. Each time, Congress cited the federal government’s trust responsibility as a principal reason for the program’s creation.³ The Indian Self-Determination and Education Assistance Act of 1975, which authorizes Indian tribes to use federal funds to administer a variety of federal programs on Indian reservations, was enacted to promote “the Federal Government’s unique and continuing relationship with, and responsibility to, individual Indian tribes and to the Indian people as a whole.”⁴ The Indian Health Care Improvement Act of 1976, which funds health services for tribal members, was passed to help fulfill “the Federal Government’s historical and unique relationship with, and resulting responsibility to, the American Indian people.”⁵ The Indian Tribal Justice Support Act of 1993, which offers administrative and financial assistance to tribal courts, was enacted because the United States “has a trust responsibility to each tribal government that includes the protection of the sovereignty of each tribal government.”⁶ The American Indian Agricultural Resource Management Act of 1993 was enacted because “the United States has a trust responsibility to protect, conserve, utilize, and manage Indian agricultural lands consistent with its fiduciary obligation and its unique relationship with Indian tribes.”⁷ The Tribal Law and Order Act of 2010, which strengthens the ability of tribes to combat reservation crime, recognizes that “the United States has distinct legal, treaty, and trust obligations to provide for the public safety of Indian country.”⁸ The federal government’s trust responsibility, in short, is not only a fundamental principle but a motivating force.

What is the origin of the trust responsibility?

No single event created the federal government's trust responsibility. Rather, as Congress explained in the Indian Trust Asset Reform Act of 2016, the trust responsibility was created over time "through treaties, statutes, and historical relations with Indian tribes." It is based on the undeniable fact that Indian tribes "surrendered claims to vast tracts of land" in exchange "for permanent, ongoing performance of Federal trust duties."⁹

The United States signed nearly four hundred treaties with Indian tribes between 1787 and 1871 (when Congress ended treaty-making with tribal nations). These treaties allowed the United States to quickly obtain without further bloodshed what it most wanted: Indian land.¹⁰ In exchange, the federal government reserved other lands for these treaty tribes and typically guaranteed that the United States would provide food, clothing, supplies, and various services to the tribes, and would protect them.¹¹ These treaties, as Professor Matthew L.M. Fletcher has stated, urged tribes "to come under the protection of the federal government," which they agreed to do, forever altering the relationship between the government and the tribes.¹²

The Treaty of Hopewell, signed with the Cherokee Nation in 1785, guaranteed "peace to all the Cherokees," assured the Cherokees that they "may have full confidence in the justice of the United States respecting their interests," and promised to "receive them into the favor and protection of the United States of America."¹³ The treaty with the Navajo Nation in 1849 guaranteed that the tribe, in exchange for the land it was relinquishing, would be placed "under the exclusive jurisdiction and protection of the Government" and the federal government would ensure "the permanent prosperity and happiness of said Indians."¹⁴ The 1858 treaty with the Yankton Sioux Tribe guaranteed that the federal government would "protect the said [tribe] in the quiet and peaceful possession" of its reservation lands.¹⁵

The United States obtained land and peace in exchange for promises.¹⁶ The United States must now keep its end of the bargain.¹⁷ This principle, that the federal government has a duty to fulfill its treaty promises and protect and assist Indian tribes, is known as *the doctrine of trust responsibility*.¹⁸ This doctrine is a cornerstone of federal Indian law.¹⁹

People often ask why Indians receive free services from the federal government, such as health care. Those services, however, are not "free." Rather, they are *prepaid*. Tribes paid dearly for these services when they exchanged their land and other rights for promises of assistance and protection.²⁰ As Kevin Washburn, former Assistant Secretary of Indian Affairs, explained, it

would be appropriate to characterize these services as the "rent" tribes are entitled to collect for their land and for avoiding or ending warfare.²¹

In what ways can a tribe benefit from having a trust relationship with the United States?

In many ways. Congress has created numerous programs that only those tribes having a trust relationship with the United States—the "federally recognized" tribes—are eligible to receive, including housing, health care, land development, education, loans, employment, and agricultural programs.²² Virtually every federally recognized tribe receives significant financial and technical assistance under one or more of these programs. The hope is someday Indian tribes will once again be economically self-sufficient. Until then, like most state governments, they need substantial federal assistance to operate their governments and provide services to their citizens.

Does the doctrine of trust responsibility require federal officials to promote and support tribal sovereignty?

The trust responsibility can be viewed either as a narrow or a broad duty. Viewed narrowly, the trust responsibility requires that the federal government provide only those services explicitly set forth in treaties or statutes. Under this view, a guarantee to "protect" a tribe or ensure the "prosperity" and "happiness" of tribal members are concepts too vague to be implemented.²³

Under a broad interpretation—which Congress has been applying for nearly fifty years now—such promises have significant meaning. They require the federal government to support and facilitate tribal sovereignty, self-determination, and economic prosperity.²⁴ As Congress stated in 2016 in the Indian Trust Asset Reform Act, "the responsibility of the United States to Indian tribes includes a duty to promote tribal self-determination regarding governmental authority and economic development."²⁵

Thus, a broad application of the trust doctrine "transcends specific treaty promises" and imposes a duty to promote tribal sovereignty and economic self-sufficiency.²⁶ "A cornerstone of this obligation," a federal appellate court noted in 2008, "is to promote a tribe's political integrity."²⁷

Interpreting the trust responsibility broadly is consistent with the negotiations that occurred when these treaties were signed. Treaties were always written in English and translated by a government agent to tribal leaders. These agents would have given treaty words such as "protection," "prosperity," and "happiness" actual meaning and value in their determined

effort to persuade tribes to relinquish their land and end warfare. As discussed in the next chapter, the Supreme Court has developed certain "canons" of treaty interpretation—consistent with the trust doctrine—that favor Indian tribes. These canons require that Indian treaties must be interpreted liberally in favor of the treaty tribe, "with any ambiguities resolved in favor of the Indians, and the words of a treaty must be construed in the sense in which they would naturally be understood by the Indians."²⁸

When these treaties were negotiated, tribes would likely have placed great reliance on the federal government's promise of protection. It was a significant factor in their decision to sign these treaties. The right of the tribes to forever be protected by the federal government, as Professor Fletcher has explained, is therefore "incredibly valuable."²⁹ As a result, federal officials should interpret their trust responsibilities broadly and help Indians and tribes to the maximum extent allowable under the treaties and statutes they implement.

How can a statute create a trust responsibility?

It is easy to understand how a treaty can create a trust responsibility because there is an actual exchange of land for promises. No similar exchange occurs when Congress enacts a statute. For two reasons, however, statutes can, and frequently do, create trust responsibilities. First, statutes are the vehicles through which Congress implements its treaty promises. As the Supreme Court has noted, "Congress may fulfill its treaty obligations and its responsibilities to the Indian tribes by enacting legislation dedicated to their circumstances and needs."³⁰ Therefore, statutes that create programs and services for tribes should be viewed as extensions of the treaties.

Second, many statutes place Indian property under the control of federal agencies and require those agencies to manage that property in the tribe's best interests. Courts have recognized that these laws necessarily impose a "fiduciary" duty—the highest degree of responsibility in the law of trusts—on the agency to manage these resources wisely and in the manner dictated by Congress.³¹ In these situations, courts "must infer that Congress intended to impose" fiduciary responsibilities on the agency.³² In short, it is clear that "the trust relationship arises out of statutes."³³

Can the federal government's trust responsibility be enforced by the courts?

It depends on whether that responsibility is being violated by Congress or by a federal agency that has been directed by Congress to undertake

specific tasks. As discussed in Chapter V, the Supreme Court has held that the Constitution vests Congress with plenary power to regulate Indian affairs, and courts may not order Congress to take any particular action on behalf of Indians or tribes. In fact, if Congress decides to terminate an Indian program—or even politically terminate an Indian tribe—a federal court has no authority to prevent it.³⁴ With respect to Congress, the trust responsibility is a moral and ethical, rather than a legally enforceable, duty.³⁵ Indians and tribes, however, *can* compel federal officials to perform the duties that Congress has delegated to their agencies, and courts must scrutinize their actions to ensure that those duties are fulfilled.³⁶

What standard should courts use in determining whether federal officials have fulfilled their trust responsibilities?

The Supreme Court has held that activities undertaken by the federal government pursuant to its trust obligations must "be judged by the most exacting fiduciary standards."³⁷ In *all* situations in which a tribal trust relationship exists, the government has a duty to act in good faith, to remain loyal to the Indian or tribal beneficiary, and to use its expertise on behalf of the beneficiary,³⁸ as is generally true whenever any type of legal trust is created.³⁹ Federal agencies responsible for implementing this nation's Indian programs have an "overriding duty . . . to deal fairly with Indians,"⁴⁰ and their actions must be judged by the "stricter standards" that apply to a fiduciary.⁴¹

As a result of treaties and statutes, the federal government has created numerous trusts in which Indians and tribes are the beneficiaries. Each trust creates its own set of fiduciary duties. For instance, when a treaty guarantees that the federal government will protect tribal land (as most treaties do), federal agencies are prevented from selling or otherwise disposing of that land unless authorized by Congress;⁴² from diverting so much water away from that land that the land cannot be productive;⁴³ and from denying Indians the ability to access or use that land.⁴⁴ When a federal statute places Indian property, such as oil, gas, minerals, or timber, under the comprehensive control and management of federal agencies, the federal government acquires a fiduciary duty to manage those trust resources properly and in the best interests of the Indian beneficiaries.⁴⁵

In what ways has the trust doctrine evolved over the years?

The trust doctrine has evolved in two significant respects over the years.

First, the trust doctrine has evolved from a tool to *suppress* Indian tribes into a tool to *support* Indian tribes. Originally, the trust doctrine reflected the

theory developed by the Christian nations of Europe that God had directed them to “civilize” non-Christians around the world for the “benefit” of the native peoples—and to do so in whatever ways the Europeans thought appropriate.⁴⁶ As Walter Echo-Hawk has explained, European nations developed a “guardianship principle” based on the view that “a Christian nation’s duty is to civilize and Christianize the backward people of the New World.”⁴⁷ Millions of Indigenous persons were subjugated and had their land confiscated by European nations in the name of guardianship. Soon after the United States gained its independence from Great Britain, the Supreme Court adopted this same guardianship principle. In 1831, the Court described the relationship between Indian tribes and the United States as one that “resembles that of a ward to his guardian.”⁴⁸

During the first one hundred fifty years, the United States “used the trust relationship to dispossess tribal land, decimate tribal societies, and drive some tribes to political extinction.”⁴⁹ Supreme Court decisions during those years endorsed the belief that Indians were inferior, incompetent, and uncivilized.⁵⁰ In 1886, for instance, the Court upheld the authority of Congress to subject reservation Indians to federal criminal laws on the grounds that Indians are “wards of the nation” and Congress has a “duty” to civilize them.⁵¹ In 1903, the Court held that Congress could break a treaty with an Indian tribe and confiscate land promised to the tribe in that treaty as an “exercise of guardianship,” acceptable conduct of “a Christian people in their treatment of an ignorant and dependent race.”⁵² In 1913, the Court upheld a law prohibiting the introduction of alcohol into Indian country on the basis that Indian people are “simple, uninformed, and inferior,” and “the United States, as a superior and civilized nation,” must exercise “a fostering care” over them.⁵³

Fortunately, the United States has evolved. In 1968, President Lyndon B. Johnson submitted a Message to Congress proposing “a new goal for our Indian programs: A goal that ends the old debate about termination of Indian programs and stresses self-determination; a goal that erases old attitudes of paternalism and promotes partnership self-help.”⁵⁴ In 1970, President Richard M. Nixon furthered this evolutionary process when he denounced prior federal policies aimed at assimilating Indian people into white society and recommended instead “a policy in which the Federal government and the Indian community play complementary roles” and where tribal governments independently administer the federal government’s reservation programs.⁵⁵ Since then, Congress has created dozens of programs that

promote tribal self-government and economic self-sufficiency. Moreover, as discussed later in this chapter, various Presidents have issued executive orders requiring federal agencies to relate to Indian tribes on a government-to-government basis.

Thus, as Mr. Washburn has noted, the trust doctrine has “evolved from a paternalistic model,” in which the federal government makes decisions for tribes, often to their detriment, “to understanding that the trust responsibility obliges the federal government to support and revitalize tribal governments and even advocate and protect tribal sovereign powers.”⁵⁶ The view expressed by the Supreme Court in 1831 that Indians are wards of the government is “obsolete in the modern Self-Determination era.”⁵⁷ What used to be described as a ward-to-guardian relationship is now described as a government-to-government relationship.⁵⁸

The second evolution that has occurred has to do with the Supreme Court. During the first one hundred fifty years of this nation’s history, of the three branches of the federal government, the Supreme Court was the most protective of tribal rights (despite its occasional bad and demeaning rulings). It was the Supreme Court, for instance, that created the canons of construction and liberally interpreted treaties in favor of Indian tribes, protecting essential hunting, fishing, and water rights. In contrast, Congress and the Presidents placed Indian tribes on reservations during those years, broke nearly every treaty they signed with Indian tribes, and promoted the removal of Indian children from their homes and their placement in boarding schools.

During the past fifty years, however, the Supreme Court has given the trust doctrine a narrow application and increased the ability of states to extend their laws into Indian country, while Congress and the Presidents (with the notable exception of Donald Trump) have given the trust doctrine a broad application and supported tribal self-government.⁵⁹ Not only have Indian tribes lost the vast majority of cases decided by the Court during the past fifty years but, in 2011, the Court stated that the government “assumes Indian trust responsibilities only to the extent it *expressly* accepts those responsibilities.”⁶⁰ In 2023, in *Arizona v. Navajo Nation*, the Court further diluted the trust doctrine, holding in a 5–4 decision that, even when an Indian tribe has an entitlement under federal law to property controlled by federal agencies, such as water, the tribe cannot compel those agencies to assist the tribe to make use of that property unless Congress or the President has expressly imposed such duties on the agencies. According to the Court, “control alone” of tribal property creates only a “bare” trust unless statutes or treaties specify otherwise,

and Indian tribes must look to Congress and the President, not to the courts, to impose those specific trust duties.⁶¹

Thus, as Mr. Washburn has noted, while “the political branches have expanded the meaning of the trust responsibility,” the courts “have narrowed the legal enforceability of the trust responsibility to tribes. . . . In some ways, meaningful fulfillment of the federal trust responsibility has been relocated from the courts to the political branches.”⁶² According to Professor Fletcher, the Supreme Court today is the “largest barrier” to a broad application of the trust doctrine. “At virtually every turn,” Professor Fletcher states, “the Supreme Court seemingly looks for a reason to rule against tribal interests, often guided by the Department of Justice in its quest.”⁶³

What remedies may a court grant when a federal agency is violating its trust responsibilities?

Congress has passed several laws that permit Indians and tribes to seek remedies from a court when a federal agency violates its trust responsibilities. These laws are discussed in Chapter XVII.

When a federal agency violates its trust duties, courts must issue an effective remedy. What constitutes an effective remedy will vary with the situation. For instance, if a federal agency has announced plans to construct a dam and the tribe knows that the dam will harm tribal fisheries, the tribe will want to obtain an injunction to prevent that harm from occurring.⁶⁴ On the other hand, if a federal agency has already injured a trust resource, such as by selling tribal oil and gas at a fraction of its value, the tribe will want to obtain damages to compensate for the loss.⁶⁵ Both types of remedies—injunctive relief to prevent future injury, and damages to compensate for past injury—are available from federal courts in many, but not all, situations.

Two Supreme Court cases decided in the early 1980s addressed the question of whether an Indian tribe can obtain money damages from the United States when a federal agency mismanages trust property. In 1980, in *United States v. Mitchell* (“*Mitchell I*”),⁶⁶ tribal members on the Quinault Reservation filed a lawsuit seeking damages against the United States on the grounds that the Department of the Interior (DOI) had mismanaged timber resources on trust land allotted to them under the General Allotment Act of 1887 (GAA).⁶⁷ The Supreme Court acknowledged that the GAA created a “limited” trust relationship between the federal government and Indian tribes. However, because nothing in the GAA required or even implied a duty to manage timber, the Court said, the Quinault could not obtain money damages under the

GAA for the alleged mismanagement.⁶⁸ The Court returned (“remanded”) the case to the lower court to consider whether some other statute or regulation might provide a basis for such a remedy.

On remand, the trial court concluded once again that the DOI had violated its trust obligations. This time, the court relied on a set of statutes and DOI regulations that imposed specific duties on the DOI to manage tribal timber. The Supreme Court agreed with that conclusion. In 1983 in *United States v. Mitchell* (“*Mitchell II*”),⁶⁹ the Court held that the statutes and regulations cited by the trial court gave the federal government “comprehensive” and “elaborate” control over the growth and harvesting of timber on Indian trust land and regulated “virtually every aspect of forest management.”⁷⁰ Although nothing in those statutes or regulations expressly conferred a right on tribal members to recover damages for agency mismanagement, the Supreme Court held that a federal law known as the Indian Tucker Act⁷¹ “can fairly be interpreted as mandating compensation” whenever Congress places such pervasive control of a tribal resource in the hands of a federal agency and provides express instructions on how to manage it, and the agency then mismanages that resource.⁷² Because these statutory obligations created a trust responsibility, the Court said, “it naturally follows that the Government should be liable in damages for the breach of its fiduciary duties,” thus recognizing that tribal members, as well as tribes, may be entitled to certain trust duties.⁷³

The decisions in *Mitchell I* and *Mitchell II* have become known as the “*Mitchell* doctrine.” In its later cases, unfortunately, the Supreme Court has given the *Mitchell* doctrine a narrow application—which is one reason tribes have been so critical of the Court in recent years. For instance, in *Navajo Nation v. United States* (2003),⁷⁴ the Navajo Nation alleged that the Secretary of the Interior, Donald Hodel, had deliberately given the tribe false and misleading information that helped convince the tribe to sell its coal to the Peabody Coal Company for a lower price than the coal was worth. The trial court found that Secretary Hodel had deceived the tribe, thereby violating his trust responsibility, and awarded nearly \$600 million in damages to the tribe to compensate for the loss of income.

The Supreme Court reversed. The statutes relied on by the Navajo Nation gave to Indian tribes what the Court called the “lead role” in negotiating the sale of tribal coal, with the DOI only overseeing the negotiations.⁷⁵ Therefore, the Court said, even if Secretary Hodel had deceived the Navajo, the tribe could not recover damages because the final decision was theirs.⁷⁶

Clearly, the Court's decision in *Navajo Nation* dilutes the trust doctrine. Secretary Hodel betrayed the Navajo. The very official to whom the tribe should have been able to turn for advice had deliberately misled them. As Kevin Washburn has commented, *Navajo Nation* "reflects a weakening of the notion of the federal government as a 'trustee' for tribes."⁷⁷

In *United States v. White Mountain Apache Tribe* (2003),⁷⁸ the Supreme Court held in a 5–4 decision that the federal government had breached its trust duties when it seized four hundred acres of tribal land, occupied it for many years to operate a school, and then returned the land to the tribe in a dilapidated condition. Although the tribe won, the 5–4 vote illustrates how difficult it has become to win a trust responsibility case in the Supreme Court. Indeed, in 2009, the Supreme Court in *Navajo Nation v. United States*⁷⁹ ("*Navajo Nation II*") once again considered a claim by the Navajo Nation that Secretary Hodel had violated his trust responsibilities to the Navajo with respect to the Peabody contract. After losing in 2003, the Navajo returned to the lower federal courts and argued that a network of federal laws that the Nation had not cited in their earlier case created a trust responsibility with respect to the management of its coal. A federal appellate court agreed with the tribe.⁸⁰ The Supreme Court, however, reversed. The Court held, once more, that because the tribe retained primary control over the terms of the contract and these statutes did not create any specific duties the government had ignored, the government had not violated its trust responsibilities, even if Hodel had deliberately deceived the tribe.⁸¹ Moreover, as mentioned earlier, the Supreme Court in 2023 held in *Arizona v. Navajo Nation* that even when a tribe has a clearly established right to a property that is under the control of a federal agency, a court cannot order the agency to assist the tribe implement or actually use that property unless Congress has expressly imposed that duty on the agency.⁸²

Many federal statutes *do* confer on federal agencies—most often, the Bureau of Indian Affairs—precisely that level of control and management over trust property, including land, minerals, and timber, as well as over money received by federal agencies from the sale or lease of that property ("royalty income"). These statutes create trust responsibilities. For instance, courts have held that when a statute requires a federal agency to collect royalty income on behalf of an Indian or tribal beneficiary, this creates a trust responsibility, and the government's actions with respect to these funds must be scrutinized under exacting fiduciary standards.⁸³ These standards require in most instances that the agency managing

these funds will: (1) create procedures, policies, and accounting methods that are likely to result in a proper discharge of the agency's managerial duties;⁸⁴ (2) ensure that the amount of money collected is the amount contractually owed;⁸⁵ (3) deposit the money with reasonable promptness into an interest-bearing or other income-producing account if the money is not immediately distributed to the beneficiary;⁸⁶ (4) ensure that the account provides a reasonable rate of return;⁸⁷ (5) ensure that each beneficiary receives its rightful share of the royalties;⁸⁸ (6) supply an accurate accounting of all funds collected, invested, and distributed in sufficient detail to allow the beneficiary to determine whether mismanagement of the funds has occurred;⁸⁹ and (7) follow all instructions set forth by Congress in the applicable statute.⁹⁰

The most comprehensive case involving mismanagement of Indian royalty income was *Cobell v. Salazar* (originally *Cobell v. Norton*), filed in 1996 on behalf of three hundred thousand Indians for whom the federal government had received royalty income. The plaintiffs alleged, and the trial court found, that the federal government had either misplaced, lost, or converted to government use billions of dollars in royalty income. The Secretary of the Interior admitted during the trial that serious errors had been made and that the DOI had not fulfilled its trust obligations. The trial court found a "century-long reign of mismanagement."⁹¹ On appeal, the appellate court concluded that "Interior's deplorable record deserves condemnation in the strongest terms."⁹² In 2010, Congress approved an omnibus settlement of *Cobell*,⁹³ although many people criticized the amount of the settlement (nearly \$3.4 billion) as unfair and insufficient to compensate for the losses that had occurred.⁹⁴

In 1999, over two hundred Native American farmers and ranchers filed a class action lawsuit alleging that the U.S. Department of Agriculture (USDA) discriminated against Native American applicants in seeking loans and benefits under several federal agricultural programs. That case, *Keepseagle v. Perdue* (originally *Keepseagle v. Veneman*), also resulted in a settlement (\$680 million), although some criticized the terms as unfair.⁹⁵

In numerous contexts, Indians have obtained remedies from courts when federal officials failed to honor their trust obligations. The trust doctrine has assisted Indians in protecting land;⁹⁶ water rights;⁹⁷ hunting and fishing rights;⁹⁸ oil, gas, and other mineral rights;⁹⁹ the right to tribal sovereignty;¹⁰⁰ and the right to proper management of royalty income held in trust accounts.¹⁰¹

As a result of *Navajo Nation I* and *II*, Indian tribes now face a dilemma: the more authority they acquire to make decisions regarding their property, the less courts are willing to find federal officials responsible when those decisions turn sour. Along with greater tribal control comes greater tribal responsibility. Tribes must “take the bitter with the sweet,” as one commentator has stated, when they decide to manage resources previously managed by a federal agency.¹⁰²

What is the duty of consultation?

The importance of consultation cannot be overstated. It is a critical part of the trust responsibility. There would be fewer lawsuits against federal agencies—and far greater mutual respect and cooperation—if federal officials meaningfully consulted with Indian tribes.

In 1994, President William F. Clinton issued a presidential memorandum requiring all federal administrative agencies to engage in consultation with Indian tribes: “Each executive department and agency shall consult, to the greatest extent practicable, and to the extent permitted by law, with tribal governments prior to taking actions that affect federally recognized tribal governments.”¹⁰³ In 2000, Clinton issued Executive Order 13175, which directs federal agencies to “establish regular and meaningful consultation” with Indian tribes in “the development of Federal policies that have tribal implications.”¹⁰⁴ This executive order, still valid today, requires federal agencies to consult with tribal governments early in the development process before issuing a regulation or policy impacting tribes.¹⁰⁵ President George W. Bush endorsed Executive Order 13175 in 2004 in a presidential memorandum entitled “Government-to-Government Relationship with Tribal Governments.”¹⁰⁶ In 2009, President Barack Obama issued a presidential memorandum also endorsing Executive Order 13175 that described consultation as a “critical ingredient” in the trust relationship and which required each federal agency to create and implement a written tribal consultation policy within ninety days.¹⁰⁷ “History has shown,” the memorandum states, “that failure to include the voices of tribal officials in formulating policy affecting their communities has all too often led to undesirable and, at times, devastating and tragic results.”¹⁰⁸ Within days of taking office in January 2021, President Joseph Biden issued his Memorandum on Tribal Consultation and Strengthening Nation-to-Nation Relationships, declaring that “regular, meaningful, and robust consultation with Tribal Nations” is a “priority of my Administration.”¹⁰⁹ The following year, the Biden administration issued

detailed standards for tribal consultation, including standards on how to determine when consultation is necessary, the notice that must be provided to tribes, and the way in which consultation should be conducted.¹¹⁰

These presidential proclamations require consultation whenever a tribal interest will be affected, even if that interest is not the primary focus of the agency action.¹¹¹ As Kevin Washburn has stated, “the United States must never take an action affecting Indian tribes without first consulting with them.”¹¹² Numerous courts have invalidated decisions by federal agencies that were made without adequate consultation with the affected tribe.¹¹³

Consultation is about respect. Through meaningful consultation, a federal agency can honor the trust relationship, work with tribes on a government-to-government basis, learn and appreciate tribal values, avoid errors and false presumptions about tribal interests, and make informed decisions.¹¹⁴ As part of the consultation process, federal agencies should (1) inform the tribe of all relevant facts at the outset of the decision-making process and keep the tribe informed of developments; (2) give the tribe sufficient time to consider the situation before expecting a response; (3) ensure that the process is accessible and convenient to tribal participants; (4) offer to provide the tribe with technical assistance; (5) maintain a dialogue with the tribe and address the tribe’s concerns in a timely manner; (6) consult with the tribal officials who have decision-making authority on the issue unless directed by those officials to work with their subordinates; (7) consider the situation from the tribe’s perspective; (8) document the consultation process and provide the tribe with a detailed written summary at the conclusion of the process; and (9) if the tribe’s recommendation is not accepted, send a written and detailed explanation of the reasons for that decision.¹¹⁵

More complaints have been made about agency consultation—or the lack of it—than almost any other area of federal administration of Indian affairs. In 2016, more than sixty tribes and tribal organizations told federal agencies, according to a government report, that agency officials typically contacted them only after they had already reached a decision, ignored tribal recommendations, failed to provide tribes with enough information or time to make an informed decision, failed to follow the agency’s own consultation policy, dismissed tribal cultural and religious interests as insignificant, and did not treat tribes on a government-to-government basis during the consultation process.¹¹⁶

Court decisions, executive orders, and agency regulations currently require only that tribes be *consulted*, not that they must give their *consent*.

Many people believe that merely consulting with tribes, as Professor Robert J. Miller recently commented, "without obtaining consent, does not fulfill the United States' legal duties to Indian nations nor does it honor the history of the United States' diplomatic relationship with tribal governments. . . ." ¹¹⁷ The UN Declaration on the Rights of Indigenous Peoples, signed by every member of the United Nations, states in Article 19 that governments "shall consult and cooperate in good faith with the indigenous peoples concerned through their own representative institutions in order to obtain their free, prior and informed consent before adopting and implementing legislative or administrative measures that may affect them." ¹¹⁸

Which statutes require agency consultation with tribes?

Congress has placed consultation duties in several federal laws. ¹¹⁹ The Indian Self-Determination and Education Assistance Act of 1975 (ISDEAA) authorizes Indian tribes to administer programs funded by the Department of Health and Human Services and by the DOI. The Act requires those agencies to consult with tribes in setting up and administering ISDEAA programs. ¹²⁰ The Archaeological Resources Protection Act of 1979 requires consultation with tribal governments before federal agencies approve excavations on tribal land. ¹²¹ The Native American Graves Protection and Repatriation Act of 1990 requires consultation with tribal governments, traditional religious leaders, and lineal descendants about the disposition of human remains, funerary objects, and other sacred burial items. ¹²²

The National Environmental Policy Act of 1969 (NEPA) ¹²³ requires the preparation of an environmental impact statement (EIS) for any proposed federal action that may significantly affect environmental quality, in which possible alternatives to the proposed action are explored. ¹²⁴ Although NEPA does not mention Indian tribes, the agency assigned to implement the Act, the Council on Environmental Quality (CEQ), has issued regulations that require agencies to contact affected Indian tribes and provide them with opportunities to participate in the preparation of an EIS. ¹²⁵ Federal courts have the authority to halt agency actions that fail to comply with NEPA requirements. ¹²⁶

The Endangered Species Act of 1973 (ESA) ¹²⁷ requires federal agencies to ensure that any action they undertake is not likely to jeopardize the existence of any species on the list of endangered species, or destroy or adversely modify the critical habitat of any listed species. ¹²⁸ The ESA "reveals a conscious decision by Congress to give endangered species priority

over the primary missions of federal agencies." ¹²⁹ Section 7 of the ESA ¹³⁰ requires that any federal agency considering action (the "action agency") consult with the federal agency that has the most expertise in that area (the "expert agency") to ensure that the proposed action is not likely to jeopardize the continued existence of any endangered species or its habitat. ¹³¹ The ESA does not require action agencies to consult with affected tribes, but tribes can insist that consultation occur between the action agency and the expert agency. ¹³²

Congress passed the National Historic Preservation Act of 1966 (NHPA) ¹³³ to help protect and preserve property within the United States that has historic significance. ¹³⁴ Section 106 of the NHPA requires that all federal agencies take historic preservation into consideration in every project those agencies undertake, fund, permit, license, or otherwise approve. ¹³⁵ Federal agencies must allow each party that might be affected by any such undertaking to voice its opinion on the proposed action if the property is listed on, or qualifies for listing on, the National Register of Historic Places. ¹³⁶ The National Register, administered by the National Park Service, an agency within the DOI, is the nation's official list of properties recognized for their significance in American history, architecture, archeology, engineering, or culture. ¹³⁷

NHPA was amended in 1992 to provide that properties eligible for listing on the National Register include property "of traditional religious and cultural importance to an Indian tribe." The amendment also requires that federal agencies consult with any federally recognized Indian tribe or Native Hawaiian organization "that attaches religious and cultural significance" to any historic property that may be affected by an agency's undertaking. ¹³⁸ The consultation requirement applies regardless of whether the historic property is located on or off an Indian reservation, ¹³⁹ but the action must be a federal undertaking and not a purely private one. For instance, before a federal agency may issue a license authorizing the construction of a cellular tower on federal land, the agency must consider whether the tower may affect the historic or cultural interests of an Indian tribe in that property and, if it might, consult with the tribe. ¹⁴⁰ The agency must also give the Advisory Council on Historic Preservation (ACHP), ¹⁴¹ the federal agency that administers NHPA, an opportunity to comment on the project before deciding whether to issue the permit. ¹⁴² NHPA requires a process, however, not a particular conclusion. "Section 106 review encourages, but does not mandate, preservation." ¹⁴³

ACHP has issued regulations implementing NHPA.¹⁴⁴ The regulations require that consultation with Indian tribes by federal agencies regarding activities covered by NHPA “commence early in the planning process,” “recognize the government-to-government relationship between the Federal Government and Indian tribes,” and be “conducted in a manner sensitive to” the tribe’s concerns and needs.¹⁴⁵ The burden is on the agency to identify affected tribes, contact them, and invite them to participate in the consultation process.¹⁴⁶ The agency must work with all interested parties to implement “alternatives or modifications to the undertaking that could avoid, minimize, or mitigate adverse effects on historic properties.”¹⁴⁷

Whenever a tribe notifies a federal agency that it has a cultural or religious interest in a site and the federal agency makes a determination that the proposed undertaking will not adversely affect that interest (a “no adverse effects” determination), the agency must notify the tribe in writing of the reasons for the finding. The tribe has thirty days to file a written objection. If an objection is filed, the agency must consult with the tribe and seek to resolve the disagreement or request that ACHP review the finding. The tribe may also request ACHP review.¹⁴⁸ If the disagreement is not resolved, ACHP prepares a written statement of its position and presents it to the head of the agency, after which the agency makes its final decision.¹⁴⁹

Section 106 does not require that federal agencies accept tribal recommendations, but it does require the agency to engage in meaningful consultation, during which the views of the tribe will be considered.¹⁵⁰ “Government-to-government consultation is a background requirement of Section 106 review at every stage.”¹⁵¹ The consultation process must be completed before the agency allows the proposed activity to commence.¹⁵² Courts have invalidated agency decisions that failed to comply with the consultation requirements of Section 106.¹⁵³

In addition to these statutes mandating consultation, many federal agency policies issued in compliance with President Obama’s 2009 memorandum require agency employees to engage in meaningful consultation with Indian tribes when carrying out agency operations. The DOI’s “Policy on Consultation with Indian Tribes” requires that whenever a DOI action may impact tribal interests, prompt and meaningful consultation between the agency and Indian tribes must commence that “will be open and transparent without compromising the rights of Indian tribes or the government-to-government consultation process.”¹⁵⁴ USDA’s consultation policy, “Tribal Consultation, Coordination, and Collaboration,” requires all agencies within

USDA to “engage with Tribes in timely and meaningful consultation on policies that have substantial direct effects on one or more Tribes” in order to achieve “information exchange, mutual understanding, and informed decision making” on a government-to-government basis.¹⁵⁵ The consultation policy of the U.S. Department of Justice (DOJ) requires “meaningful” consultation with affected tribes on any agency action that has “Tribal implications” in a manner “accessible and convenient to Tribal participants” and “conducted through a transparent and accountable process.”¹⁵⁶

Although federal agencies now have their own consultation policies, it would still be best if Congress enacted a law that sets forth what is minimally necessary to satisfy the government’s obligations, and which states that tribal *consent* is required unless some compelling federal interest outweighs the tribe’s request.¹⁵⁷

Does the United States have a trust relationship with every Indian tribe?

Under a broad interpretation of the trust doctrine, the federal government has a trust relationship with every Indian tribe.¹⁵⁸ The DOI, however, which administers most of the federal government’s Indian programs, believes that only those tribes officially “recognized” by the DOI have a trust relationship with the United States, thereby entitling them to participate in the department’s programs.¹⁵⁹

The Supreme Court has yet to determine the extent to which the trust doctrine applies to those tribes that are not federally recognized (the “non-recognized” tribes). The prevailing view of lower federal courts is that even if a tribe is non-recognized, it may have a limited trust relationship with the federal government. For example, courts have held that non-recognized tribes may file suit to enforce treaties they signed with the United States.¹⁶⁰ Courts have also held that non-recognized tribes and their members may participate in programs and receive benefits or protections that Congress has not restricted to recognized tribes and their members.¹⁶¹

Does the trust doctrine apply to Indians living off the reservation?

Under a broad interpretation of the trust doctrine, the federal government owes trust duties to all Indians, including those living off-reservation, and courts have recognized the existence of such a duty in narrow situations.¹⁶² For the most part, however, off-reservation Indians have been allowed to

participate only in those few federal programs that Congress has specifically made available to them, unless they return to their reservations to receive the services. Of course, statutes requiring that federal officials provide specific services to off-reservation Indians create a trust obligation to do so.¹⁶³

Does the trust responsibility extend to off-reservation activities that affect reservation Indians?

In certain circumstances, yes. For example, activities by federal agencies undertaken off the reservation that would diminish on-reservation water supplies¹⁶⁴ or pollute reservation air or water¹⁶⁵ have been held to violate the trust doctrine. In addition, a duty of consultation often applies to off-reservation agency action that would harm a tribal interest.¹⁶⁶ The trust doctrine, however, likely does not extend to off-reservation activities regulated by a federal agency on *privately owned* land unless a treaty or statute expressly requires the agency to protect tribal interests in such situations.¹⁶⁷

May Congress terminate a trust relationship?

Yes. Congress may terminate its trust relationship with an Indian tribe at any time, with or without the tribe's consent.¹⁶⁸ During the termination era discussed in Chapter I, Congress terminated its trust relationships with 109 tribes. In each instance, it accomplished this by passing a law that prohibited the tribe from exercising governmental powers, required the tribe to distribute all of its property and assets to tribal members or to a state-chartered corporation, eliminated the reservation, and declared that the tribe's trust relationship with the United States had ended.¹⁶⁹ (Fortunately, Congress has since restored to federal status the vast majority of these terminated tribes.)

A trust relationship may only be terminated by an express act of Congress; termination will not be implied.¹⁷⁰ Even the tribe may not terminate the relationship.¹⁷¹

May Congress assign trust duties to state officials?

Yes. In the same way that Congress may assign trust duties to federal officials, it may assign trust duties to state officials, and Congress has done so on occasion.¹⁷²

Overall, have federal officials faithfully implemented their trust duties?

Federal officials have often ignored or improperly executed their trust obligations, mismanaged tribal trust resources, and inhibited tribes from

becoming self-governing.¹⁷³ Indeed, according to Professor Fletcher, the federal government has fulfilled only a "tiny portion" of its trust duties.¹⁷⁴

Ultimately, the fault lies with Congress, which has the responsibility to honor this nation's treaty commitments and ensure that federal agencies are properly performing their trust duties. Congress, however, has broken most Indian treaties, terminated Indian tribes, and failed to adequately supervise the management of tribal resources by federal agencies. Congress has a trust responsibility to enhance the social and economic well-being of Indian people, yet Indians are the most disadvantaged and impoverished group in our society.¹⁷⁵ In 2018, the U.S. Commission on Civil Rights reported that Native Americans "face significant inequities" compared with non-Native people in "health, education, housing, and economic measures" based in significant part on "the federal government's continuing failure to live up to its trust obligations."¹⁷⁶

This is not to suggest that federal agencies always act improperly regarding tribal interests; to the contrary, federal agencies and their thousands of dedicated employees assist tribes in countless ways every day. The Society of American Indian Government Employees (SAIGE) was formed in 2002 by employees of the federal government to help recruit Native Americans to work for the federal service. According to its mission statement, SAIGE's goal is to "educate Federal agencies in the history and obligations of the Federal Indian Trust responsibility and to assist them in its implementation."¹⁷⁷

Some federal agencies have been sued by non-Indians who accused them of unfairly protecting tribal interests. The Army Corps of Engineers was sued when it refused to allow a non-Indian company to construct a fish farm in a manner the Corps believed would interfere with an Indian tribe's treaty right to fish at that location.¹⁷⁸ The National Park Service was sued by non-Indians for having requested that the public voluntarily refrain from climbing Devil's Tower (located on Park Service lands in Wyoming) during the weeks that local Indian tribes conduct traditional religious ceremonies at that site.¹⁷⁹ The Secretary of Commerce was sued by non-Indians for restricting their access to certain ocean fisheries, although the Secretary said the restriction was necessary to protect Indian treaty fishing rights.¹⁸⁰ The government won each of those cases.

Congress and federal agencies cannot always remain loyal to Indians to the exclusion of all other interests.¹⁸¹ However, there is no responsibility more venerable or important than the trust responsibility. Congress and federal officials must honor this nation's treaty commitments to Indian tribes.

Congress should enact legislation that makes clear to federal officials that the goal of the trust relationship is tribal self-determination and economic independence, that tribes must be treated on a government-to-government basis, and that Indian trust assets must be handled with fiduciary responsibility.¹⁸² Congress must also adequately fund the programs it has created to assist Indians and tribes, many of which have been underfunded for years. The U.S. Commission on Civil Rights reported in 2018 that federal funding for tribal programs “remains grossly inadequate to meet the most basic needs the federal government is obligated to provide.”¹⁸³ Fulfillment of the trust responsibility cannot occur without sufficient funding from Congress.¹⁸⁴ Many tribes today struggle just to make payroll and provide basic services to their members.

In addition, Congress should continue to allow tribes to administer federal programs on their reservations, and increase the number of programs that tribes may administer, both because tribal officials typically know best what tribal members want and need and because, by administering these programs, they will gain administrative and governmental experience.¹⁸⁵

Some people see an inconsistency between aspiring to tribal self-government and self-sufficiency, on the one hand, and insisting on the fulfillment of trust duties, on the other. But the fact is that few tribes, if any, are in a position to be economically independent after hundreds of years of efforts by the United States to undermine, if not destroy, tribal governments. Whatever the drawbacks to the trust doctrine, most tribes need federal assistance, and are entitled to receive it. Until a tribe declines federal support, federal agencies should properly perform their trust duties and foster tribal sovereignty and economic self-sufficiency.¹⁸⁶

Notes

1. *United States v. Jicarilla Apache Nation*, 564 U.S. 162, 174 (2011), citing *United States v. Mitchell*, 463 U.S. 206, 225 (1983). See also *Haaland v. Brackeen*, 143 S. Ct. 1609, 1628 (2023) (internal citation omitted) (recognizing the government’s “distinctive obligation of trust” for Indian tribes and their members); *Cobell v. Norton*, 240 F.3d 1081, 1098 (D.C. Cir. 2001) (“the government has longstanding and substantial trust obligations to Indians”).
2. *Jicarilla Apache Nation*, 564 U.S. at 174 (citations omitted).
3. See NELL JESSUP NEWTON ET AL., EDS., *FELIX COHEN’S HANDBOOK OF FEDERAL INDIAN LAW* 420–21 § 5.04[3][a], 414 (2012 ed.) (“Nearly every piece of modern

4. 25 U.S.C. § 5302(b).
5. 25 U.S.C. § 1601(1).
6. 25 U.S.C.A. §§ 3601(2).
7. 25 U.S.C. § 3701(2).
8. 111th Cong. Pub. L. 211, § 202(a)(1), codified within 25 U.S.C. § 1302.
9. 25 U.S.C. § 5601(4), Pub. L. No. 114-178, 130 Stat. 432 (June 22, 2016).
10. See *Arizona v. Navajo Nation*, 143 S. Ct. 1804, 1809 (2023) (noting that in an 1868 treaty, the United States made assurances to the Navajo Nation “in exchange for the Navajos’ promise not to engage in further war”); *Northwestern Band of Shoshone Nation v. Wooten*, 83 F.4th 1205, 1207 (9th Cir. 2023) (noting that the U.S. wanted the Shoshone to sign a treaty so that the U.S. could obtain land and save lives and money). See also Kevin K. Washburn, *What the Future Holds: The Changing Landscape of Federal Indian Policy*, 130 HARV. L. REV. FORUM 200, 217–18 (2017) (“the trust responsibility sprung directly from the recognition that the United States was founded on Indian land” and until that land is returned to the tribes, a “strong moral justification” exists to assist the tribes whose land was confiscated.) Mary C. Wood, *Indian Land and the Promise of Native Sovereignty: The Trust Doctrine Revisited*, 1994 UTAH L. REV. 1471, 1496–97 (1994).
11. Wood, *supra* note 10, at 1497 (footnotes omitted).
12. Matthew L.M. Fletcher, *Politics, Indian Law, and the Constitution*, 108 CAL. L. REV. 495, 505–08 (2020). See also Matthew L.M. Fletcher, *The Dark Matter of Federal Indian Law*, 75 MAINE L. REV. 305, 309–14 (2023).
13. A copy of the treaty is available at <https://catalog.archives.gov/id/299798>.
14. Treaty of 1849, 9 Stat. 974, art. I, XI.
15. Treaty of 1858, 11 Stat. 743 at 744.
16. See *McGirt v. Oklahoma*, 140 S. Ct. 2452, 2459 (2020) (“At the far end of the Trail of Tears was a promise.”); *Herrera v. Wyoming*, 139 S. Ct. 1686, 1692–93 (2019) (noting that “the United States made certain promises to the [Crow] tribe” in exchange for thirty million acres of land); *Washington State Dept. of Licensing v. Cougar Den, Inc.*, 139 S. Ct. 1000, 1016 (2019) (noting that the Yakama Nation “received a reservation and various promises” in exchange for ten million acres of land).
17. *Seminole Nation v. United States*, 316 U.S. 286, 297 (1942). See also *United States v. Mitchell*, 463 U.S. 206, 225 (1983); *Morton v. Mancari*, 417 U.S. 535, 551–52 (1974); Fletcher, *Politics*, *supra* note 12, at 555 (noting that “Indian and tribal legal rights” were acquired through “a bargained-for exchange.”)
18. See Fletcher, *The Dark Matter*, *supra* note 12, at 311 (noting that the federal government’s promise of protection is “also known as the trust responsibility”). For a further discussion of the trust doctrine, see Mary Kathryn Nagle, *Nothing to Trust: The Unconstitutional Origins of the Post-Dawes Act Trust Doctrine*, 48 TULSA L. REV. 63, 67–71 (2012); Wood, *supra* note 10.
19. See COHEN’S HANDBOOK, *supra* note 3, at § 5.04[3][a], 412 (noting that the trust doctrine is “[o]ne of the basic principles in Indian law”).

20. See *id.* at § 22.01[1], 1377 (recognizing that federal services to Indians “were never mere gratuities”).
21. Washburn, *supra* note 10, at 218.
22. The process by which a tribe can become federally recognized is explained in Chapter XIV, Section E.
23. See *Arizona v. Navajo Nation*, 143 S. Ct. 1804, 1815 (2023) (holding that although the treaty with the Navajo promised them a “permanent home,” this assurance did not obligate the federal government to take affirmative steps to secure water for the tribe).
24. See Fletcher, *Politics*, *supra* note 12, at 505–08; Wood, *supra* note 10, at 1497–1506.
25. 25 U.S.C. § 5602. See also 25 U.S.C. § 4301, recognizing that, due to the “special relationship between the United States and Indian tribes,” Congress should promote tribal economic development by, among other things, encouraging private investment in Indian country.
26. Wood, *supra* note 10, at 1506.
27. *California Valley Miwok Tribe v. United States*, 515 F.3d 1262, 1267 (D.C. Cir. 2008).
28. *Herrera v. Wyoming*, 139 S. Ct. 1686, 1699 (2019) (internal citations omitted). See also *Montana v. Blackfeet Tribe*, 471 U.S. 759, 766 (1985); *Metlakatla Indian Community v. Dunleavy*, 58 F.4th 1034, 1042, 1046 (9th Cir. 2023); *Ramah Navajo Chapter v. Lujan*, 112 F.3d 1455, 1462 (10th Cir. 1997). However, as the Supreme Court cautioned in *Arizona v. Navajo Nation*, 143 S. Ct. 1804, 1809 (2023), the text of the treaty must support the interpretation the tribe wants it to have.
29. Fletcher, *The Dark Matter*, *supra* note 12, at 319.
30. *Rice v. Cayetano*, 528 U.S. 495, 519 (2000).
31. See *United States v. Mitchell*, 463 U.S. 206, 225 (1983); *Loudner v. United States*, 108 F.3d 896, 900–01 (8th Cir. 1997).
32. *Cobell v. Norton*, 240 F.3d 1081, 1099 (D.C. Cir. 2001) (citation omitted). See also *Shoshone Indian Tribe v. United States*, 364 F.3d 1339, 1347–48 (Fed. Cir. 2004), *cert. denied*, 544 U.S. 973 (2005).
33. *Cobell v. Kempthorne*, 455 F.3d 301, 307 (D.C. Cir. 2006), *cert. denied*, 549 U.S. 1317 (2007). See also *United States v. Jicarilla Apache Nation*, 564 U.S. 162, 177 (2011) (noting that “the applicable statute and regulations” establish the scope of the government’s trust obligations).
34. *Menominee Tribe of Indians v. United States*, 391 U.S. 404 (1968); *Lone Wolf v. Hitchcock*, 187 U.S. 553 (1903).
35. See *Tee-Hit-Ton Indians v. United States*, 348 U.S. 272 (1955). See also *United States v. Mitchell*, 463 U.S. 206, 225 (1983); Wood, *supra* note 10, at 512–13.
36. *Mitchell*, 463 U.S. at 225; *Seminole Nation v. United States*, 316 U.S. 286, 296–97 (1942); *United States v. Creek Nation*, 295 U.S. 103 (1935).
37. *Seminole Nation*, 316 U.S. at 296–97. See also *Shoshone Indian Tribe of the Wind River Reservation v. United States*, 364 F.3d 1339, 1347–48 (Fed. Cir. 2004), *cert. denied*, 544 U.S. 973 (2005); *Osage Tribe of Indians of Oklahoma v. United States*, 72 Fed. Cl. 629, 668 (Fed. Cl. 2006). See Gregory C. Sisk, *Yesterday and Today: Of Indians, Breach of Trust, Money, and Sovereign Immunity*, 39 TULSA L. REV. 313, 334–40 (2003).

38. See cases cited *supra* note 36. See also *Wilkinson v. United States*, 440 F.3d 970 (8th Cir. 2006); *Shoshone Indian Tribe*, 364 F.3d at 1347–48.
39. RESTATEMENT (THIRD) OF TRUSTS § 2 (2003). See generally MARK ASHER, AUSTIN SCOTT, & WILLIAM FLETCHER, SCOTT AND ASHER ON TRUSTS (5th ed. 2009), ch. 2.
40. *Morton v. Ruiz*, 415 U.S. 199, 236 (1974).
41. *Cobell v. Norton*, 240 F.3d 1081, 1099 (D.C. Cir. 2001) (internal citation omitted).
42. *Cramer v. United States*, 261 U.S. 219 (1923); *Lane v. Pueblo of Santa Rosa*, 249 U.S. 110 (1919).
43. *Pyramid Lake Paiute Tribe of Indians v. Morton*, 354 F. Supp. 252 (D.D.C. 1972), *rev’d on other grounds*, 499 F.2d 1095 (D.C. Cir. 1974).
44. *United States v. Creek Nation*, 295 U.S. 103 (1935).
45. See *United States v. Mitchell*, 463 U.S. 206, 225 (1983); *Jicarilla Apache Tribe v. Supron Energy Corp.*, 782 F.2d 855 (10th Cir. 1986) (*en banc*), *adopting in relevant part* 728 F.2d 1555, 1567 (10th Cir. 1984) (dissenting opinion), *modified*, 793 F.2d 1171 (10th Cir.), *cert. denied*, 479 U.S. 970 (1986); *Klamath Tribes v. United States*, 1996 WL 924509 (D. Ore. 1996); *Pyramid Lake*, 354 F. Supp. 252.
46. See Robert J. Miller, *The Doctrine of Discovery: The International Law of Colonialism*, THE INDIGENOUS PEOPLES’ J. OF L., CULTURE & RESISTANCE 35 (2019); FRANK POMMERSHEIM, *BROKEN LANDSCAPE* 92–95 (2009).
47. WALTER ECHO-HAWK, IN THE COURTS OF THE CONQUEROR: THE TEN WORST INDIAN LAW CASES EVER DECIDED 19 (2010). See also POMMERSHEIM, *supra* note 46, at 94.
48. *Cherokee Nation v. Georgia*, 30 U.S. 1, 16–17 (1831); see also *United States v. Rickert*, 188 U.S. 432, 437 (1903) (stating that Indians “are yet wards of the nation”).
49. Robert T. Anderson, *Indigenous Rights to Water & Environmental Protection*, 53 HARV. C.R.-C.L. L. REV. 337, 346 (2018). See also COHEN’S HANDBOOK, *supra* note 3, §§ 1.03[3]–1.03[4](a), 38–48.
50. See Fletcher, *Politics*, *supra* note 12, at 507.
51. *United States v. Kagama*, 118 U.S. 375, 383, 384 (1886).
52. *Lone Wolf v. Hitchcock*, 187 U.S. 553, 565 (1903) (internal quotation omitted). For a discussion of *Lone Wolf*, see ECHO-HAWK, *supra* note 47, at 161–86.
53. *United States v. Sandoval*, 231 U.S. 28, 41, 46 (1913).
54. Special Message to Congress on the Problems of the American Indian: “The Forgotten American,” 1 PUB. PAPERS 335 (Mar. 6, 1968), available at https://www.digitalhistory.uh.edu/dispatch_textbook.cfm?smtid=3&psid=718.
55. Message from the President of the United States Transmitting Recommendations for Indian Policy, H.R. Doc. No. 363, 91st Cong., 2d Sess. 6 (1970), available at <https://files.eric.ed.gov/fulltext/ED042523.pdf>.
56. Washburn, *supra* note 10, at 201. See also Matthew L.M. Fletcher, *Failed Protectors: The Indian Trust and Killers of the Flower Moon*, 117 MICH. L. REV. 1253, 1256 (2019).
57. Anderson, *supra* note 49, at 357.
58. See, e.g., 25 U.S.C.A. §§ 3601(1), (2). See also Fletcher, *Politics*, *supra* note 12, at 507–08; Washburn, *supra* note 10, at 216.

59. See Alex Tallchief Skibine, *The Supreme Court's Last 30 Years of Federal Indian Law: Looking for Equilibrium or Supremacy*, 8 COLUM. J. RACE & L. 277, 285–86 (2018); see also *Oklahoma v. Castro-Huerta*, 142 S. Ct. 2486 (2022).
60. *United States v. Jicarilla Apache Nation*, 564 U.S. 162, 177 (2011) (emphasis added).
61. *Arizona v. Navajo Nation*, 143 S. Ct. 1804, 1814–15 (2023).
62. Washburn, *supra* note 10, at 200; see also Fletcher, *supra* note 56, at 1266 (noting that the Supreme Court “routinely enables the federal government to ignore or outright reject the duty of protection” that forms the heart of the trust doctrine).
63. See Fletcher, *The Dark Matter*, *supra* note 12, at 318.
64. See *Pit River Tribe v. U.S. Forest Service*, 469 F.3d 768 (9th Cir. 2006); *United States v. Winnebago Tribe of Nebraska*, 542 F.2d 1002 (8th Cir. 1976); *Comanche Nation, Oklahoma v. United States*, 393 F. Supp. 2d 1196 (W.D. Okla. 2005).
65. See *United States v. Mitchell*, 463 U.S. 206, 225 (1983); *White Mountain Apache Tribe v. United States*, 537 U.S. 465 (2003); *Cheyenne-Arapaho Tribes of Oklahoma v. United States*, 966 F.2d 583, 589 (10th Cir. 1992), *cert. denied*, 507 U.S. 1003 (1993).
66. *United States v. Mitchell*, 445 U.S. 535 (1980).
67. 25 U.S.C. §§ 331 *et seq.*
68. *Mitchell*, 445 U.S. at 542.
69. *United States v. Mitchell*, 463 U.S. 206 (1983).
70. *Id.* at 208, 225.
71. 28 U.S.C. § 1505.
72. *Mitchell*, 463 U.S. at 228 (emphasis added).
73. *Id.* at 226. See also *Fletcher v. United States*, 26 F.4th 1314 (10th Cir. 2022); *Marceau v. Blackfeet Housing Authority*, 540 F.3d 916 (9th Cir. 2008); *Ashley v. U.S. Dept. of Interior*, 408 F.3d 999 (8th Cir. 2005).
74. *United States v. Navajo Nation*, 537 U.S. 488 (2003).
75. *Id.* at 508.
76. *Id.* at 507–08.
77. Washburn, *supra* note 10, at 222. See Fletcher, *supra* note at 56, at 1265; see also *id.*, at 1267 (“the Department of Justice’s litigation position is that the federal government’s interests always override the trust responsibility”).
78. *United States v. White Mountain Apache Tribe*, 537 U.S. 465 (2003).
79. *United States v. Navajo Nation*, 556 U.S. 287 (2009).
80. *Navajo Nation v. United States*, 501 F.3d 1327 (Fed. Cir. 2007).
81. *United States v. Navajo Nation*, 556 U.S. at 290. See also *United States v. Jicarilla Apache Nation*, 564 U.S. 162 (2011); *Menominee Indian Tribe v. United States*, 577 U.S. 250 (2016); *Inter-Tribal Council of Arizona v. United States*, 125 Fed. Cl. 493, 499–500 (Fed. Cir. 2020).
82. *Arizona v. Navajo Nation*, 143 S. Ct. 1804, 1814–15 (2023).
83. *Chippewa Cree Tribe of the Rocky Boy’s Reservation v. United States*, 69 Fed. Cl. 639, 650 (Fed. Cl. 2006); *Loudner v. United States*, 108 F.3d 896, 900–01 (8th Cir. 1997). See also *White Mountain Apache*, 537 U.S. at 476.
84. *Osage Tribe*, 72 Fed. Cl. at 643.
85. *Osage Tribe of Indians of Oklahoma v. United States*, 68 Fed. Cl. 322, 328 (Fed. Cl. 2005); *Shoshone Indian Tribe*, 364 F.3d at 1350–51; *Pelt v. Utah*, 539 F.3d 1271, 1276 (2008).

86. *Osage Tribe of Indians of Oklahoma v. United States*, 93 Fed. Cl. 1 (2010).
87. *Shoshone Indian Tribe*, 364 F.3d at 1348–49; *Chippewa Cree*, 69 Fed. Cl. at 656–62; *Pelt*, 539 F.3d at 1281.
88. *Whiskers v. United States*, 600 F.2d 1332, 1334 (10th Cir. 1979); *Chippewa Cree*, 69 Fed. Cl. at 647–48.
89. *Fletcher v. United States*, 730 F.3d 1206, 1212–16 (10th Cir. 2013); *Chippewa Cree*, 69 Fed. Cl. at 664; *Shoshone Indian Tribe*, 364 F.3d at 1351; *Pelt*, 539 F.3d at 1285; *Cobell v. Norton*, 240 F.3d 1081, 1103–05 (D.C. Cir. 2001). Supplying every minute detail is not usually required, however. See *Fletcher v. United States*, 854 F.3d 1201, 1204 (10th Cir. 2017).
90. See *Cobell v. Kempthorne*, 455 F.3d 301, 304 (D.C. Cir. 2006).
91. *Cobell v. Babbitt*, 91 F. Supp. 2d 1, 53 (D.D.C. 1999), *aff’d in relevant part*, 240 F.3d 1081 (D.C. Cir. 2001).
92. *Cobell v. Kempthorne*, 455 F.3d at 333.
93. Claims Resolution Act of 2010, H.R. 4783, 111th Cong. (Dec. 8, 2010).
94. See Brooke Campbell, *Cobell Settlement Finalized After Years of Litigation: Victory at Last?*, 37 AM. INDIAN L. REV. 629 (2013).
95. For a history of the litigation, see *Keepseagle v. Perdue*, 856 F.3d 1039 (D.C. Cir. 2017), *cert. denied*, 138 S. Ct. 1326 (2018).
96. *White Mountain Apache Tribe v. United States*, 537 U.S. 465 (2003); *Pit River Tribe v. United States*, 469 F.3d 768, 788 (9th Cir. 2006).
97. See *Pyramid Lake Paiute Tribe of Indians v. Morton*, 354 F. Supp. 252 (D.D.C. 1972), *rev’d on other grounds*, 499 F.2d 1095 (D.C. Cir. 1974).
98. See *Parravano v. Babbitt*, 70 F.3d 539, 545–46 (9th Cir. 1995), *cert. denied*, 518 U.S. 1016 (1996); *United States v. Eberhardt*, 789 F.2d 1354 (9th Cir. 1986) (finding a general trust duty to protect Indian fisheries).
99. *Woods Petroleum Corp. v. Department of Interior*, 47 F.3d 1032, 1038–41 (10th Cir.) (*en banc*), *cert. denied*, 516 U.S. 808 (1995).
100. *Harjo v. Kleppe*, 420 F. Supp. 1110 (D.D.C. 1976), *aff’d sub nom. Harjo v. Andrus*, 581 F.2d 949 (D.C. Cir. 1978).
101. See *Cobell v. Norton*, 240 F.3d 1081, 1095 (D.C. Cir. 2001); *Loudner v. United States*, 108 F.3d 896, 901 (8th Cir. 1997); *Manchester Band of Pomo Indians, Inc. v. United States*, 363 F. Supp. 1238 (N.D. Cal. 1973).
102. Sisk, *supra* note 37, at 347.
103. President William F. Clinton, “Memorandum on Government-to-Government Relations with Native American Tribal Governments,” 30 Weekly Comp. Pres. Doc. (May 2, 1994), 59 Fed. Reg. 22,951 (Apr. 29, 1994).
104. Exec. Order No. 13175, 65 Fed. Reg. 67,249 (Nov. 6, 2000).
105. *Id.*
106. 2 Pub. Papers 2177 (Sept. 23, 2004).
107. “Memorandum for the Heads of Executive Departments and Agencies: Tribal Consultation,” 74 Fed. Reg. 57,881 (Nov. 9, 2009).
108. *Id.*
109. Memorandum on Tribal Consultation and Strengthening Nation-to-Nation Relationships (Jan. 26, 2021), available at <https://www.whitehouse.gov/brief>

- ing-room/presidential-actions/2021/01/26/memorandum-on-tribal-consultation-and-strengthening-nation-to-nation-relationships/.
110. Memorandum on Uniform Standards for Tribal Consultation, The White House (Nov. 30, 2022), *available at* <https://www.whitehouse.gov/briefing-room/presidential-actions/2022/11/30/memorandum-on-uniform-standards-for-tribal-consultation/>.
 111. See Exec. Order No. 13175, 65 Fed. Reg. 67,249 (Nov. 6, 2000) (mandating consultation when federal policies “have tribal implications.”).
 112. Washburn, *supra* note 10, at 214. See also Robert J. Miller, *Consultation or Consent: The United States Duty to Confer with American Indian Governments*, 91 N.D. L. REV. 37, 43–44 (2015); Angelique Townsend EagleWoman, *Bringing Balance to Mid-North America: Re-Structuring the Sovereign Relationships Between Tribal Nations and the United States*, 41 U. BAL. L. REV. 671, 672–74 (2012); Derek Haskew, *Federal Consultation with Indian Tribes: The Foundation of Enlightened Policy Decisions, or Another Badge of Shame?*, 24 AM. INDIAN L. REV. 21, 24 (1999/2000).
 113. See *California Wilderness Coalition v. U.S. Dept. of Energy*, 631 F.3d 1072, 1087 (9th Cir. 2011); *Pit River Tribe v. United States Forest Service*, 469 F.3d 768 (9th Cir. 2006); *Pueblo of Sandia v. United States*, 50 F.3d 856, 862 (10th Cir. 1995); *Oglala Sioux Tribe of Indians v. Andrus*, 603 F.2d 707 (8th Cir. 1979); *Nez Perce Tribe v. United States Forest Service*, 2013 WL 5212317 (D. Idaho 2013); *Quechan Tribe of the Fort Yuma Reservation v. U.S. Dep’t of the Interior*, 755 F. Supp. 2d 1104 (S.D. Cal. 2010); *Confed. Tribes and Bands of Yakima Nation v. U.S. Dept. of Agric.*, 2010 WL 3434091 (E.D. Wash. 2010); *Klamath Tribes v. United States*, 1996 WL 924509 at *8 (D. Ore. 1996).
 114. See Haskew, *supra* note 112, at 23; see also Troy A. Eid, *Beyond Dakota Access Pipeline: Energy Development and the Imperative for Meaningful Tribal Consultation*, 95 DENV. L. REV. 593, 605–07 (2018) (discussing how energy companies have benefitted from consultation with Indian tribes).
 115. See cases cited *supra* note 113; Miller, *supra* note 112, at 62–67; Anderson, *supra* note 49, at 377; Haskew, *supra* note 112; Policy on Tribal Consultation 0300.01, DEP’T OF JUSTICE (Aug. 29, 2013), *available at* <https://www.justice.gov/sites/default/files/otj/docs/doj-memorandum-tribal-consultation.pdf>.
 116. *Improving Tribal Consultation and Tribal Involvement in Federal Infrastructure Decisions*, issued by the Dep’t of the Interior, Dep’t of the Army, and Dep’t of Justice (Jan. 2017), at 2, 12–13, 16–18, *available at* <https://www.bia.gov/sites/bia.gov/files/assets/as-ia/pdf/idc2-060030.pdf>. See also Haskew, *supra* note 112, at 22–27.
 117. Miller, *supra* note 112, at 40.
 118. United Nations Declaration on the Rights of Indigenous Peoples, Dec. 13, 2007, *available at* https://www.un.org/development/desa/indigenouspeoples/wp-content/uploads/sites/19/2018/11/UNDRIP_E_web.pdf, at art. 19; see also *id.*, at art. 32(2) (requiring consent “in connection with the development, utilization or exploitation of mineral, water or other resources”).
 119. For a list of statutes and regulations requiring consultation with Indian tribes, see <http://www.schlosserlawfiles.com/consult/PoliciesReConsult%20w-IndianTribes.htm>.

120. Pub. L. No. 93-638, 88 Stat. 2203 (1975).
121. Pub. L. No. 96-95, 93 Stat. 721, 727 (1979) (codified at 16 U.S.C. § 470ii) (requiring that regulations be issued only after tribal consultations).
122. Pub. L. No. 101-601, § 5, 104 Stat. 3048, 3052 (1990).
123. 42 U.S.C. §§ 4321 *et seq.*
124. See 42 U.S.C. § 4332(C) and §§ 4321, 4331; 40 C.F.R. § 1501.1. See *Robertson v. Methow Valley Citizens Council*, 490 U.S. 332, 350–51 (1989); *United Keetoowah Band of Cherokee Indians in Oklahoma v. FCC*, 933 F.3d 728, 734–35 (D.C. Cir. 2019); *Dine Citizens Against Ruining Our Environment v. Bernhardt*, 923 F.3d 821, 851 (10th Cir. 2019).
125. The regulations are set out in 40 C.F.R. Parts 1500–1508; see, e.g., 40 C.F.R. § 1501.2(d)(2) (requiring early consultation with Indian tribes).
126. See *Dine Citizens Against Ruining Our Environment v. Haaland*, 59 F.4th 1016 (10th Cir. 2022); *Oglala Sioux Tribe v. U.S. Nuclear Regulatory Comm’n*, 896 F.3d 520, 538 (D.C. Cir. 2018); Anderson, *supra* note 49, at 371–79.
127. 87 Stat. 884, 16 U.S.C. §§ 1531 *et seq.*
128. 16 U.S.C. § 1536(a)(2).
129. *Tenn. Valley Auth. v. Hill*, 437 U.S. 153, 180 (1978) (internal quotations marks omitted).
130. 16 U.S.C. § 1536; see 50 C.F.R. § 402.16.
131. 16 U.S.C. § 1536(a)(2).
132. *Karuk Tribe of California v. U.S. Forest Service*, 681 F.3d 1006 (9th Cir. 2012) (*en banc*).
133. NHPA, Pub. L. 102-575, was originally codified in Title 16 of the U.S. Code but was transferred to various sections of Title 54 in 2014. See Pub. L. No. 113-287, 128 Stat. 3094.
134. 54 U.S.C. § 300101.
135. Section 106 of NHPA is now codified at 54 U.S.C. 306108; see also USDA Reg. 1350-002 (2013), *available at* <https://usdasearch.usda.gov/search?utf8=%E2%9C%93&affiliate=usda&query=1350-02&commit=Search>.
136. See 36 C.F.R. §§ 800.2 & .3(f).
137. The National Register is available at <https://www.nps.gov/subjects/nationalregister/index.htm>.
138. Now codified at 54 U.S.C. § 302706; see also *id.*, at § 306102; 36 C.F.R. §§ 800.2(c)(2) and 800.3(f)(2).
139. See *United Keetoowah Band of Cherokee Indians in Oklahoma v. FCC*, 933 F.3d 728, 733–34 (D.C. Cir. 2019).
140. See *id.*
141. See 54 U.S.C. § 304101.
142. 54 U.S.C. §§ 306108, 302706, 306102; see Advisory Council on Historic Preservation, *A Citizen’s Guide to Section 106 Review*, *available at* <https://www.achp.gov/sites/default/files/documents/2017-01/CitizenGuide.pdf>, at 3, 5.
143. See “A Citizen’s Guide,” *supra* note 142, at 4; *United Keetoowah Band*, 933 F.3d at 733–34.

144. 36 C.F.R. pt. 800. See *Te-Moak Tribe of W. Shoshone of Nevada v. U.S. Dep't of Interior*, 608 F.3d 592, 607 (9th Cir. 2010).
145. 36 C.F.R. §§ 800(2)(c)(2)(ii)(A) & (C). See *Dine Citizens Against Ruining Our Environment v. Bernhardt*, 923 F.3d 821, 839 (10th Cir. 2019); *Muckleshoot Indian Tribe v. U.S. Forest Serv.*, 177 F.3d 800, 805 (9th Cir. 1999); *Quechan Tribe of the Fort Yuma Reservation v. U.S. Dep't of the Interior*, 755 F. Supp. 2d 1104, 1108–11 (S.D. Cal. 2010).
146. 36 C.F.R. §§ 800.2(c)(1)–(4), 800.3(f). See *Dine Citizens*, 923 F.3d at 846.
147. 36 C.F.R. § 800.6(a).
148. 36 C.F.R. §§ 800.5(c)(2)(i) and (iii).
149. 36 C.F.R. § 800.7(c).
150. *Id.* at § 800.5.
151. *United Keetoowah Band of Cherokee Indians in Oklahoma*, 933 F.3d 728, 745 (D.C. Cir. 2019).
152. See 54 U.S.C. § 306108.
153. See *Pueblo of Sandia v. United States*, 50 F.3d 856, 862 (10th Cir. 1995); *Quechan Tribe of the Fort Yuma Reservation v. U.S. Dep't of the Interior*, 755 F. Supp. 2d 1104 (S.D. Cal. 2010). But see *Oglala Sioux Tribe v. U.S. Nuclear Regulatory Comm'n*, 45 F.4th 291 (D.C. Cir. 2022) (finding that adequate consultation had occurred).
154. "Department of the Interior Policy on Consultation with Indian Tribes," Order No. 3317 (Dec. 1, 2011). See also DOI Procedures for Consultation with Indian Tribes (2015), available at <https://www.doi.gov/sites/doi.gov/files/elips/documents/512-dm-5.pdf>.
155. U.S. Dep't of Ag., "Action Plan for Tribal Consultation and Collaboration," available at <http://www.usda.gov/documents/ConsultationPlan.pdf>, at 1.
156. U.S. Department of Justice Policy Statement 0300.01, 65 Fed. Reg. 67,249 (Aug. 29, 2013), available at <https://www.justice.gov/sites/default/files/otj/docs/doj-memorandum-tibal-consultation.pdf>; see also "Attorney General Guidelines Stating Principles for Working with Federally Recognized Indian Tribes," 79 Fed. Reg. 73905 (Dec. 12, 2014).
157. See Anderson, *supra* note 49, at 378.
158. See *Pit River Tribe v. U.S. Forest Service*, 469 F.3d 768, 788 (9th Cir. 2006) ("The federal government owes a fiduciary obligation to all Indian tribes as a class.") (internal citations omitted). See also *United States v. Sandoval*, 231 U.S. 28, 48 (1913) (recognizing that a trust relationship exists with the Pueblos of New Mexico, despite the fact that no treaties were signed with any Pueblo).
159. See 25 U.S.C. § 5131(a). See Fletcher, *Politics*, *supra* note 12, at 508. The process by which tribes can obtain federal recognition is explained in Chapter XIV, Section E.
160. *United States v. Washington*, 384 F. Supp. 312, 406 (W.D. Wash. 1974), *aff'd*, 520 F.2d 676, 692–93 (9th Cir. 1975), *cert. denied*, 423 U.S. 1086 (1976); *Greene v. Babbitt*, 64 F.3d 1266, 1270 (9th Cir. 1995).
161. See *Yellin v. Confederated Tribes of Chehalis Reservation*, 141 S. Ct. 2434 (2021); *Greene v. Rhode Island*, 398 F.3d 45, 54–55 (1st Cir. 2005); *Alabama-Coushatta Tribe of Texas v. United States*, 2000 WL 1013532 at *46–47 (Fed. Cl. 2000); *Gibson v. Babbitt*, 72 F. Supp. 2d 1356, 1360 (S.D. Fla. 1999).

162. See *Morton v. Ruiz*, 415 U.S. 199, 237–38 (1974); *United States v. Holliday*, 70 U.S. 407 (1865); *Loudner v. United States*, 108 F.3d 896, 901 (8th Cir. 1997); *Pelt v. Utah*, 2008 WL 723740 at *5 (D. Utah 2008); *McNabb for McNabb v. Heckler*, 628 F. Supp. 544 (D. Mont. 1986), *aff'd*, 829 F.2d 789 (9th Cir. 1987).
163. *Loudner*, 108 F.3d at 901; *Pelt*, 2008 WL 723740; *Malone v. BIA*, 38 F.3d 433, 438 (9th Cir. 1994); *St. Paul Intertribal Housing Bd. v. Reynolds*, 564 F. Supp. 1408 (D. Minn. 1983); *Eric v. Secretary of U.S. Dept. of Housing and Urban Development*, 464 F. Supp. 44 (D. Alaska 1978).
164. *Pyramid Lake Paiute Tribe v. Morton*, 354 F. Supp. 252 (D.D.C. 1972), *rev'd on other grounds*, 499 F.2d 1095 (D.C. Cir. 1974).
165. *Nance v. Environmental Protection Agency*, 645 F.2d 701 (9th Cir. 1981), *cert. denied*, 454 U.S. 1081 (1981).
166. See cases cited *supra* note 126.
167. See *Gros Ventre Tribe v. United States*, 469 F.3d 801 (9th Cir. 2006).
168. *Menominee Tribe of Indians v. United States*, 391 U.S. 404 (1968).
169. See, e.g., 25 U.S.C. §§ 564, 677, 691. Termination is further discussed in Chapter V, Section B.
170. *Menominee Tribe*, 391 U.S. 404; *Heckman v. United States*, 224 U.S. 413 (1912); *United States v. Nice*, 241 U.S. 591 (1916).
171. *Kennerly v. District Court of 9th Judicial District of Montana*, 400 U.S. 423 (1971); *Joint Council of the Passamaquoddy Tribe v. Morton*, 528 F.2d 370, 380 (1st Cir. 1975).
172. See *Ysleta Del Sur Pueblo v. Texas*, 142 S. Ct. 1929, 1934 (2022) (noting that in 1968, "Congress assigned its trust responsibilities for the Tribe to Texas" and that Texas subsequently "renounced" those responsibilities); *Pelt v. Utah*, 104 F.3d 1534, 1544 (10th Cir. 1996) (holding that a tribe can enforce trust responsibilities assigned by Congress to state officials).
173. Numerous court cases finding a breach of the trust doctrine are listed in Chapter XVII, Section C. See also Statement of Daniel I.S.J. Rey-Bear, *Oversight Hearing on Fulfilling the Trust Responsibility: The Foundation of the Government-to-Government Relationship*, U.S. SEN. COMM. ON INDIAN AFFAIRS (May 17, 2012), <https://www.indian.senate.gov/sites/default/files/upload/files/Dan-Rey-Bear-testimony051712.pdf>, at 5–6; Kevin Gover, *An Indian Trust for the Twenty-First Century*, 46 NAT. RESOURCES J. 317, 318 (2006).
174. Fletcher, *The Dark Matter*, *supra* note 12, at 307.
175. This subject is discussed in Chapter I, notes 10–15 and accompanying text. See generally *Broken Promises: Continuing Federal Funding Shortfall for Native Americans*, U.S. COMMISSION ON CIVIL RIGHTS, <https://www.usccr.gov/pubs/2018/12-20-Broken-Promises.pdf>.
176. *Broken Promises*, *supra* note 175, at 203.
177. <https://saige.org/our-mission/>.
178. *Northwest Sea Farms, Inc. v. U.S. Army Corps of Engineers*, 931 F. Supp. 1515 (W.D. Wash. 1996).
179. *Bear Lodge Multiple Use Ass'n. v. Babbitt*, 175 F.3d 814 (10th Cir. 1999), *cert. denied*, 529 U.S. 1037 (2000).

180. *Parravano v. Babbitt*, 70 F.3d 539 (9th Cir. 1995), *cert. denied*, 518 U.S. 1016 (1996); *Kandra v. United States*, 145 F. Supp. 2d 1192 (D. Ore. 2001).
181. See *United States v. Jicarilla Apache Nation*, 564 U.S. 162, 182 (2011) (noting that the federal government has concerns that often compete with its trust obligations); *Nevada v. United States*, 463 U.S. 110, 128 (1983). See also *Kalispel Tribe of Indians v. U.S. Department of the Interior*, 999 F.3d 683, 695 (9th Cir. 2021) (holding that where two tribes have competing interests, the Secretary must consider both but may have to side with one tribe over the other).
182. See Rey-Bear, *supra* note 173, at 10; *Statement of Matthew L. M. Fletcher Before the Senate Committee on Indian Affairs—Oversight Hearing on Fulfilling the Federal Trust Responsibility: The Foundation of the Government-to-Government Relationship*, MSU Legal Studies Research Paper No. 10-13 (2012), available at <https://ssrn.com/abstract=2060395>; Kevin K. Washburn, *Everybody Does Better in Indian Country When Tribes Are Empowered*, UNM School of Law Research Paper No. 2018-17 (2018), available at https://papers.ssrn.com/sol3/papers.cfm?abstract_id=3152654.
183. *Broken Promises*, *supra* note 175, at 4. See also *id.* at 2.
184. See Washburn, *supra* note 10, at 217–20; EagleWoman, *supra* note 112, at 675–77.
185. See Washburn, *supra* note 10, at 207–08.
186. See Washburn, *supra* note 10, at 217–20; Sisk, *supra* note 37, at 358–73.

IV

Indian Treaties

What is a treaty?

“A treaty, including one between the United States and an Indian tribe, is essentially a contract between two sovereign nations,” the Supreme Court has stated.¹ The European countries that settled in North America recognized that Indian tribes are sovereign nations. England, Spain, and France entered into more than one hundred treaties with Indian tribes to acquire land and facilitate commerce and trade.²

The United States conducted its formal relations with Indian tribes through treaties as well. In fact, the first treaty signed by the United States following the onset of the Revolutionary War was with an Indian tribe, the Delaware.³ (The treaty, signed in 1778, obtained permission from the Delaware to cross tribal land to attack the British and even offered the tribe the opportunity to become a state of the United States.)⁴ Indian tribes were regarded by the Europeans and by the United States as independent nations, the Supreme Court noted in 1832, “capable of making treaties.”⁵

Who can sign a treaty on behalf of the United States?

Article II, Section 2, Clause 2 of the U.S. Constitution (the “Treaty Clause”) authorizes the President, with the consent of two-thirds of the Senate, to sign a treaty on behalf of the United States. The Constitution declares that federal treaties and federal laws are “the supreme law of the land.”⁶ Therefore, if a treaty conflicts with a state constitution or state law, the treaty prevails.⁷ The Treaty Clause has been cited by the Supreme Court as being a source of federal power over Indian tribes, although nothing in the Clause expressly confers that authority.⁸

A treaty can be made on any subject. A treaty, however, may not deprive a citizen of a right guaranteed by the Constitution; the Constitution is always superior to any treaty (or law).⁹ The United States has signed scores of treaties with foreign countries covering such subjects as trade, fishing on the high seas, international travel, rules of war, and climate control.